

Elite College Admissions After *SFFA v. Harvard*

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During *Students for Fair Admissions v. Harvard*, elite colleges and universities made a collection of predictions, some quite specific, about what would happen if SFFA were to win. Harvard's expert economist, David Card, estimated that eliminating racial preferences would cut the Black share of Harvard's admitted class from 14 percent to 6 percent. Fifteen research universities assured the Supreme Court that no race-neutral alternative could preserve the diversity of their classes. Thirty-three selective colleges and universities forecast Black enrollment declines of 50 to 70 percent. Using Common Data Set and IPEDS records assembled for sixty-three selective institutions through fall 2025, I test these predictions against post-ruling enrollment. None came to pass. Once the incompatible definitions of population and race underlying the litigation figures are reconciled, Harvard's Black enrollment matches its 2010-2015 level. Black enrollment at the research universities is essentially unchanged. Average Black enrollment among the thirty-three colleges exceeds its pre-litigation benchmark. Extending the analysis to the forty-seven top-ranked national universities and liberal arts colleges shows the same stability. Admissions policies at elite colleges and universities have not meaningfully changed.

Keywords: affirmative action, college admissions, expert testimony, Students for Fair Admissions, Common Data Set.

Introduction

The Supreme Court's decision in *Students for Fair Admissions v. Harvard* (600 U.S. 181, decided June 29, 2023) prohibited the consideration of race in college admissions. During the litigation, the affected institutions committed themselves to forecasts, some unusually precise, of what such a prohibition would do. Harvard expert David Card simulated race-blind admission for the Class of 2019 and reported that the African American share of admitted students would fall from 14 percent to 6 percent (Card 2017, 103). Fifteen research universities assured the Court that no race-neutral alternative could fully replace the consideration of race in assembling their classes (Universities Brief 2022, 31). A coalition of thirty-three selective colleges filed an amicus brief forecasting declines in Black enrollment of 50 to 70 percent (Amherst Brief 2022,

13-14). Enrollment records for the first two admissions cycles conducted under the new legal regime, the entering classes of fall 2024 and fall 2025, are now available. These forecasts can therefore be evaluated against realized outcomes, a test that, to my knowledge, no published study has yet performed.

The evaluation is less straightforward than it appears. The only enrollment statistics the public observes come from the Common Data Set (CDS), a standardized annual disclosure filed by nearly every selective college, and from the federal IPEDS Fall Enrollment survey. Card's figures were computed on a different population (admitted rather than enrolled students, domestic applicants only) under a different racial classification scheme (Harvard's internal coding, which assigns multiracial applicants to single categories). The same student body therefore carries two Black shares that differ by roughly a factor of two depending on which convention is applied. Commentary since the ruling has routinely compared Card's simulated 6 percent with CDS-based figures near 6 percent and inferred that Harvard now admits without regard to race. The Harvard analysis below shows that this inference is an artifact of mismatched units. Once the expert-report metric and the federal metric are placed on a common basis, Harvard's post-ruling classes are indistinguishable from the classes it enrolled while practicing the admissions system the Court struck down.

The paper's primary conclusion is that elite institutions, beginning with Harvard, enroll classes whose racial composition is essentially unchanged by *SFFA*, a stability their own litigation forecasts said race-neutral admissions could not produce. Four bodies of evidence support this conclusion. Black enrollment at Harvard, correctly converted, sits at its 2010-2015 level. Mean Black enrollment at the fifteen research universities that told the Court race-neutral admissions would undercut their diversity is within 3 percent of its pre-litigation level, and six of the fifteen enroll more Black students, relative to class size, than before. Mean Black enrollment across the thirty-three amici colleges is above, not below, its pre-litigation benchmark, and only two signatories' post-ruling means sit below half of their own baselines. And the ratio of Asian to Black first-year students across the forty-seven top-ranked institutions has moved a small fraction of the distance toward the levels observed at universities bound by California's Proposition 209, the nearest available race-blind benchmark.

A secondary conclusion concerns the role of economic expertise. Card's report was produced for litigation, was never published in a peer-reviewed outlet, and stated its predictions in units that correspond to no publicly reported statistic. The plaintiff-side analyses of the same data did enter the journals (Arcidiacono, Kinsler, and Ransom 2022a, 2022b), but the defense simulation that became the public reference point did not, and no mapping between its conventions and the CDS categories has previously been published. Sixteen prominent economists, three of them Nobel laureates, nonetheless attested to the Court that the analysis was methodologically sound (Economics Professors Brief 2022), so its predictions carry the profession's endorsement rather than one expert's private judgment. The consequence is that the most widely cited prediction in the case is one that the public record cannot check without the conversion developed here, and that institutions with an interest in appearing compliant benefit from the resulting ambiguity. Harvard's own use of this ambiguity in its post-ruling

disclosures is documented below. When expert economic analysis enters high-stakes litigation in units that resist verification, the discipline’s standard remedy, replication against public data, is unavailable by construction.

The remainder of the paper proceeds as follows. The next section reviews the literature on the magnitude of racial preferences in admissions. The section after it describes the litigation forecasts and their provenance. A results section describes the data, develops the conversion between the expert-report and federal metrics, and presents results for Harvard, including its post-ruling disclosure practice, for the research universities, and for the amici colleges. The paper then extends the analysis to the broader cohort of forty-seven top-ranked institutions, examines the two institutions, Amherst and Johns Hopkins, whose trajectories departed from the cohort pattern, and relates the results to the national test-taking population. A final section concludes.

Related Literature

A substantial empirical literature, extending back three decades, estimates the magnitude of racial preferences at selective institutions, and its results are consistent enough to summarize briefly. Bowen and Bok, in work first published in 1998, calculated from the 1989 entering cohort of the College and Beyond schools that race-neutral admission would have reduced the Black share of matriculants from 7.1 percent to between 2.1 and 3.6 percent (Bowen and Bok 2018, 39). Espenshade and Chung (2005), simulating admissions at three elite private universities from 1997 application records, found that eliminating racial preferences would cut the acceptance rate of African American candidates from 33.7 to 12.2 percent, reduce the African American share of the admitted class from 9.0 to 3.3 percent, and leave Asian applicants filling nearly four of every five vacated seats. Arcidiacono and Lovenheim (2016) survey the broader literature and report effect sizes of the same order wherever selective admissions are modeled. These simulations are the direct intellectual ancestors of the forecasts the amici colleges placed before the Supreme Court.

The SFFA litigation itself generated the most detailed estimates in the literature, because discovery gave the experts on both sides access to complete applicant-level records. From the Harvard and UNC data, Arcidiacono, Kinsler, and Ransom published three peer-reviewed studies. They found that the typical African American admit to Harvard would have faced an admission rate roughly four times lower had the identical application been evaluated as white, with preferences largest for applicants from advantaged backgrounds (Arcidiacono, Kinsler, and Ransom 2023), that Asian American applicants faced a penalty relative to observably similar white applicants (Arcidiacono, Kinsler, and Ransom 2022a), and that preferences for legacies and athletes flowed overwhelmingly to white applicants (Arcidiacono, Kinsler, and Ransom 2022b). Card’s simulated decline from 14 to 6 percent, described in the next section, is the defense counterpart of these estimates. The two sides disputed modeling choices at length, but no expert in the case produced a model in which removing racial preferences left the racial

composition of the class approximately unchanged. Effect sizes of this magnitude were common ground.

A complementary quasi-experimental literature studies what happens when selective institutions actually stop considering race. California’s Proposition 209 is the cleanest case. Bleemer (2022) links every University of California applicant from 1994 through 2002 to later educational and labor-market records and shows that the ban produced immediate, large declines in underrepresented minority enrollment at the most selective campuses, cascading those applicants into less selective institutions and lowering their subsequent wages. Hinrichs (2012) finds in national data that statewide bans leave aggregate minority enrollment roughly unchanged while reducing it sharply at the most selective institutions, the segment occupied by every school studied here. These episodes supply the empirical benchmark this paper uses. Where race-conscious admission genuinely ends at a highly selective institution, the compositional change is large and immediate, and it appears in exactly the enrollment statistics examined below.

The stakes of the compositional question are documented by Chetty, Deming, and Friedman (2026), who estimate the causal effect of attending an Ivy-Plus college on reaching the top of the income distribution and on entry into leadership positions. Their subject is the consequence of admission rather than its determinants, but their findings explain why the demographics of a few dozen institutions enrolling a fraction of one percent of American undergraduates command the attention they do. The first post-ruling cycle has begun to attract systematic study: Bloem et al. (2026) link national testing cohorts to fall 2024 enrollment records and document underrepresented minority enrollees cascading down the selectivity distribution in the ruling’s first year, with their subject being aggregate enrollment patterns rather than the litigation record. What no part of this literature yet contains is a comparison of the litigation-era predictions with realized post-ruling enrollment, stated in the units the predictions were issued. The prediction side of the record closed in 2023. The outcome side, now two entering classes deep, sits in public filings, and the remainder of this paper performs the comparison.

The Litigation Forecasts

Card’s report, filed December 15, 2017, estimated admissions models on Harvard’s internal records for applicants to the Classes of 2014 through 2019 and then simulated the Class of 2019 admissions cycle with the race coefficients set to zero:

“In my simulation, the share of African-American students in the admitted class would drop from 14% to 6%. The fraction of Hispanic or Other students would fall from 14% to 9%. The fraction of admitted students who are Asian-American would rise from 24% to 27%. And the fraction of admitted students who are White would rise from 40% to 48%.” (Card 2017, 103)

The baseline of 14 percent corresponds to 234 African American admits among the 1,679 domestic admits in the simulation sample (Card 2017, 125).¹ Domestic status, defined as citizenship or permanent residency, restricts the sample throughout the report (Card 2017, nn. 6, 8), and race follows Harvard’s internal classification, under which an applicant marking more than one race is assigned to a single category. The report’s time-series exhibits (Card 2017, 90-93) indicate that the domestic-admit Black share remained close to 14 percent over the full estimation window, so the Class of 2019 baseline is representative of the period rather than an outlier.

Two amicus briefs, both filed August 1, 2022, carried versions of these forecasts to the Supreme Court, and their quantitative commitments differ markedly. The first came from fifteen research universities (Brown, Caltech, Carnegie Mellon, Columbia, Cornell, Dartmouth, Duke, Emory, Johns Hopkins, Princeton, Penn, the University of Chicago, Vanderbilt, Washington University in St. Louis, and Yale), a group that includes neither Harvard nor any signatory of the second brief. Its one explicit number is Harvard-specific: the trial record showed that the race-neutral alternatives proposed by the petitioner “would lead to a near 33% reduction in the number of African American students admitted” at Harvard (Universities Brief 2022, 25, quoting the district court’s findings).² The 33 percent figure is smaller than Card’s 57 percent relative decline because it describes a different counterfactual, the petitioner’s proposed alternatives with their compensating policy changes, rather than the removal of race with nothing else altered. Both figures descend from the same expert analysis. Regarding their own campuses, the fifteen universities made no numerical forecast. Their claims were qualitative but unambiguous in direction: exclusively race-neutral admissions “would undercut Amici’s efforts to attain ‘the benefits of diversity’ they seek,” and “no race-neutral alternative presently can fully replace race-conscious individualized and holistic review” (Universities Brief 2022, 25, 31). The brief thus committed its signatories to the proposition that compliance with the petitioner’s requested rule would visibly reduce racial diversity at their own institutions.

The second brief, organized by Amherst and joined by thirty-two other colleges, made the broadest quantitative claims in the record:

“Black enrollment would likely decline between 50% and 70%; the probability of Black applicants receiving offers of admission would drop to half that of white

¹Card’s simulation sample comprises the admits to the Class of 2019 who appear in his preferred year-by-year regression model, estimated on a corrected and expanded version of the applicant data assembled by the plaintiff’s expert. Its admitted class consists of 676 White, 402 Asian American, 233 Hispanic or Other, 234 African American, and 134 race-missing admits (Card 2017, 125, Exhibit 45). Harvard admitted roughly 2,000 students in the cycle, so several hundred admits, internationals and applicants outside the regression sample, are excluded. The calibration does not require Card’s sample to match the enrolled class member for member. The conversion factor absorbs all scope differences between the two populations and requires only that their relationship be stable across the calibration cohorts, which the flat time series in Card’s exhibits (Card 2017, 90-93) supports.

²The underlying finding summarizes the simulations of the petitioner’s expert: African American representation in Harvard’s incoming class “would fall nearly one-third to approximately 10% of the class” (*SFFA v. Harvard*, 397 F. Supp. 3d at 178-84, reviewing race-neutral alternatives).

students; and the percentage of Black students matriculating would drop from roughly 7.1% of the student body to 2.1%. Strictly enforced, a ‘do not consider race’ policy would ‘presumably take [B]lack enrollments . . . back to early 1960s levels, before colleges and universities began to make serious efforts to recruit minority students.’” (Amherst Brief 2022, 13-14)

The brief’s footnote for the entire quoted passage is Bowen and Bok (2018, 39), whose simulations on the 1989 entering cohort of the College and Beyond institutions had Black matriculants falling from 7.1 percent to between 2.1 and 3.6 percent, declines of 49 to 70 percent. The interval, the halved admission probability, and the 7.1-to-2.1 endpoints are therefore one simulation, run on a cohort that entered college a third of a century before the ruling. A separate footnote attaches Grodsky and Kurlaender (2006, 7-10) to the preceding sentence’s general claim of a “drastic resegregating impact.” The single contemporary, institution-specific estimate in the brief is attributed to Amherst’s internal planning: an entirely race-blind policy would reduce the college’s combined Native American, Black, and Hispanic enrollment “by approximately half” (Amherst Brief 2022, 14). The supporting footnote supplies neither a document, a date, nor a cohort, noting only that the underlying studies formed part of the periodic review of admissions policy that *Grutter v. Bollinger* requires of institutions using racial preferences. The amici therefore left no single well-specified counterfactual, and I evaluate their forecast as a proportional claim against several candidate baselines below.

The economics profession participated in the litigation directly, on both sides. A group of economists filed in support of the petitioner attacking the lower courts’ reliance on Card’s model (Economists Brief 2022). Sixteen economists and statisticians answered in support of Harvard, among them three Nobel laureates, George Akerlof, Robert Solow, and Guido Imbens, the last a co-recipient of the 2021 prize awarded to Card himself. Their brief attested that Card “is one of the most outstanding and respected scholars in the field of econometrics and applied economics,” that “his statistical analyses in this case were methodologically sound,” and that “the criticisms of the lower courts’ consideration of Dr. Card’s analyses in the Brief of Economists as Amici Curiae in Support of Petitioner . . . are not credible” (Economics Professors Brief 2022, 1-2). That exchange, whatever its merits, establishes that the simulation tested in this paper is not marginal work. Prominent members of the profession endorsed it to the Court, so the predictions tested below carry professional endorsement and not only one expert’s judgment.

Post-SFFA Results

Data

I assembled enrollment records for sixty-three selective colleges and universities from two sources. The sixty-three are the union of the forty-seven institutions in the 2026 US News top-25 National University and top-25 National Liberal Arts College lists with the forty-nine litigation participants examined above (Harvard, the fifteen universities, and the thirty-three

amici); the two groups share thirty-three members. The three federal service academies appear in the liberal arts ranking but are excluded throughout: their admissions run through congressional nomination and service commitments, and the Naval Academy publishes no Common Data Set at all. The first source is CDS item B2, which reports first-time first-year enrollment by racial and ethnic category. I collected every publicly available CDS filing for each institution from 1998-99 through 2025-26, extracting the B2 tables from PDF, spreadsheet, and web formats. The second is the IPEDS Fall Enrollment component for 2008 through 2024, which reports the same categories under the same federal definitions. For any institution-year covered by both sources, the IPEDS record is used, since its uniform structure eliminates the parsing errors that school-specific PDF layouts occasionally introduce. CDS filings supply the years outside IPEDS coverage, most importantly fall 2025, for which fifty-one of the sixty-three institutions had published a usable filing at the time of writing (thirty-nine of them among the forty-seven top-ranked institutions, the count relevant to the cohort figures below). All statistics below refer to first-time first-year students.

Two definitions recur. A “US” share divides by total first-year enrollment net of nonresident students, who appear on a separate B2 line and receive no racial classification in these data. A “whole-class” share divides by total first-year enrollment. Federal race categories follow the 2010 IPEDS rules. Hispanic students of any race are reported as Hispanic, non-Hispanic students reporting two or more races are reported in a dedicated multiracial category, and the Black line therefore contains only single-race, non-Hispanic Black students. These rules differ substantially from the classification underlying Card’s figures, a difference quantified below.

Harvard

Commensurability

Three definitional wedges separate Card’s metric from anything a CDS filing reports. The populations differ, since roughly 2,000 students are admitted to produce an entering class of roughly 1,600. The scope differs, since Card excludes international students while the CDS reports them on a separate line within the same table. The race coding differs, since Harvard’s internal scheme assigns multiracial applicants to single categories, recording Black-identifying applicants as Black, while the federal scheme reports non-Hispanic multiracial students in a separate category and Hispanic students of any race as Hispanic. Matriculation rates do vary somewhat by race, with Black admits enrolling at moderately lower rates than white or Asian admits according to the trial record (*SFFA v. Harvard*, 397 F. Supp. 3d at 155-56), but the magnitude is small relative to the classification wedge, and I treat the combined gap as a single conversion to be estimated rather than decomposed.

The estimation exploits the fact that both metrics can be observed for the identical cohort. Card’s baseline describes students admitted in the spring of 2015. Those who enrolled constitute the fall 2015 entering class, which appears in Harvard’s CDS 2015-16 filing as 109 single-race Black first-years among 1,441 US first-years, or 7.56 percent. The ratio of the federal figure to

the expert-report figure, computed on the underlying counts (109/1,441 divided by 234/1,679), is 0.543. Throughout the paper, shares are displayed to one decimal and proportional changes to the nearest percent, and all calculations use unrounded values.

A second calibration uses the full estimation window rather than a single cohort. Averaging Harvard’s CDS shares over the six entering classes of fall 2010 through fall 2015 gives 7.53 percent, and dividing by the 14 percent that Card’s exhibits show for the same window yields 0.538. The two calibrations agree to two decimal places, and I use 0.54 below. A prediction stated in Card’s units is converted to the federal metric by multiplication by this factor, so the simulated race-blind share of 6 percent corresponds to 3.2 percent on a CDS filing (3.23 on the six-cohort calibration, 3.26 on the single-cohort one). This converted benchmark, rather than the unconverted 6 percent, is the quantity against which post-ruling filings should be compared.

The conversion factor bundles the multiracial and Hispanic reassignments, the admit-to-enrollee step, and the domestic-scope adjustment, all measured on 2010-2015 cohorts, and may have drifted since. National rates of multiracial identification have risen since then, which would push the current factor below 0.54 and the converted benchmark below 3.2 percent. Nondisclosure of race has also risen, which depresses measured single-race shares in recent filings. Both developments bias the comparison toward finding compliance. Matriculation rates are a third potential source of drift, since post-ruling recruiting or financial aid could have changed the rate at which admitted Black students enroll, but the yield differences documented at trial amounted to a few percentage points against a classification wedge of nearly a factor of two, so movement in this channel is second order. Estimates of no change therefore cannot be attributed to drift in the factor, a point developed further below.

The Post-Ruling Classes

Harvard’s CDS filing for 2025-26 reports 97 Black first-year students in an entering class of 1,673, which is 5.8 percent of the whole class and 6.8 percent of US first-years. Read against the unconverted simulation, a figure of 5.8 percent suggests that Card’s race-blind counterfactual has essentially been realized. Read against the converted benchmark of 3.2 percent, it indicates the opposite. Table 1 assembles the comparison in both metrics, averaging the two post-ruling classes to reduce year-to-year noise, to parallel the six-cohort averaging of the baseline.

Table 1: Black share of Harvard’s entering class under the federal (CDS) metric and the expert-report (Card) metric. The CDS metric is the single-race Black share of enrolled US first-years. The conversion factor between metrics is 0.54, calibrated on the Classes of 2014-19 as described in the text.

	CDS units	Card units
Estimation window (Classes of 2014-19, avg)	7.5%	14.0%
Race-blind simulation (Card 2017)	3.2%	6.0%

Table 1: Black share of Harvard’s entering class under the federal (CDS) metric and the expert-report (Card) metric. The CDS metric is the single-race Black share of enrolled US first-years. The conversion factor between metrics is 0.54, calibrated on the Classes of 2014-19 as described in the text.

	CDS units	Card units
Post-ruling classes (Classes of 2028-29, avg)	7.5%	13.9%

The entering classes of fall 2024 and fall 2025 carried US Black shares of 8.14 and 6.82 percent respectively, averaging 7.48 percent. The 2010-2015 mean is 7.53 percent. The post-ruling average sits within a twentieth of a percentage point of the pre-ruling average, and both display as 7.5 percent at the paper’s reporting precision. Expressed in Card’s own units, Harvard enrolled classes near 14 percent Black throughout the litigation window and enrolls classes near 13.9 percent Black now. If the race-blind counterfactual in the expert report is taken at face value, the gap between what a compliant Harvard would report and what Harvard does report exceeds a factor of two.

Two measurement objections require examination. The first concerns nondisclosure. If Black students became disproportionately likely to decline the race question after the ruling, single-race Black shares would fall mechanically. The denominator of the US share includes nondisclosers, so a withheld identification subtracts from the numerator while leaving the denominator intact, and the bias can only run downward. The direction of this bias runs toward compliance, not away from it, so it cannot generate a spurious finding of no change. Its scale is also limited. Harvard’s unknown-race share averaged 5.3 percent over the 2010-2015 calibration cohorts, reached a low of 2.4 percent in 2023, and averages near 8 percent in the post-ruling classes. Relative to the calibration period, the increase is under three percentage points, and Card’s own sample carried an 8 percent race-missing rate. The second objection concerns drift in the conversion factor, addressed above: plausible drift lowers the converted benchmark and widens, rather than narrows, the measured gap. The conservative statement of the Harvard result is that the filings contain no evidence of movement toward the race-blind benchmark of a magnitude the expert report would allow one to detect.

Post-Ruling Disclosure Practice

The unit ambiguity documented above is not confined to expert reports. Harvard’s own public communications since the ruling have employed a metric distinct from the one in its federal filings. The announcement for the fall 2024 class stated that 14 percent of students identifying a race identified as African American or Black (Harvard Gazette 2024). Two definitional choices produced that figure: race is self-identified without single-race restriction, and the denominator excludes the nondisclosing group, which doubled to 8 percent that same year. The corresponding IPEDS figure for the identical class is 8.1 percent. For the fall 2025 class, the university moved its demographic announcement to late October, when federal reporting

obligations come due, and reported 11.5 percent on the same disclosers-only basis (Harvard Crimson 2025), against 6.8 percent of US first-years in its CDS filing.³ An institution whose public number reproduces its litigation-era level while its federal number halves that level enjoys considerable interpretive latitude, and the coexistence of the two metrics has to date attracted essentially no comment. Where the categories of expert analysis, public communication, and statutory reporting fail to correspond, enrollment outcomes cannot be monitored by inspection, and claims of compliance or of catastrophe can each find a supporting statistic.

The Research Universities

The fifteen universities made no numerical forecast about themselves, but their qualitative commitment is testable. If exclusively race-neutral admissions would undercut the racial diversity these institutions seek, then compliance with the ruling should have produced visible declines in Black enrollment on their own campuses. Table 2 reports Black shares of US first-years, the same metric used for Harvard, over the same pre-period, for each signatory.

Table 2: Black share of first-year US students at the fifteen research universities that filed the Universities Brief, ordered by proportional change. The pre-period comprises the entering classes of fall 2010-2015. The post-period averages fall 2024 and fall 2025 where both filings exist. Changes are computed on unrounded shares.

University	Fall 2010-15 avg	Fall 2024-25 avg	Change
Carnegie Mellon	6.0%	3.2%	-47%
Columbia	9.9%	7.2%	-28%
Cornell	6.9%	5.0%	-27%
Johns Hopkins	6.0%	4.4%	-27%
Vanderbilt	9.4%	6.9%	-26%
Duke	10.7%	8.5%	-20%
Dartmouth	7.3%	6.0%	-18%
Princeton	8.5%	8.0%	-7%
Brown	7.8%	7.4%	-5%
Emory	10.3%	11.0%	+7%
Chicago	5.7%	6.9%	+22%
Penn	8.0%	9.9%	+24%
Washington Univ.	5.8%	7.4%	+27%
Yale	7.6%	10.0%	+31%
Caltech	1.6%	6.5%	+310%
All 15 signatories (mean)	7.4%	7.2%	-3%

³The announcement counted 1,675 enrolling students against the CDS filing's 1,673 first-time first-years, a difference presumably attributable to the timing of the fall census.

The group mean moved from 7.4 percent to 7.2 percent, a relative decline of about 3 percent. Six of the fifteen enroll a higher Black share than in the pre-period. No signatory sits at half its baseline, and a single one, Carnegie Mellon, shows a decline exceeding even the 33 percent figure the brief quoted for a milder counterfactual at Harvard. Caltech’s large proportional increase reflects a very low base, from 1.6 to 6.5 percent, and Yale, Washington University, and Penn all enroll between 24 and 31 percent more Black first-years, relative to class size, than they did in the pre-period. If the signatories complied with the ruling, their own filings refute their claim that compliance would visibly reduce their racial diversity. The remaining evidence supports the alternative reading, that admissions practice did not become race-neutral.

The Amici Colleges

The amici forecast refers to “the student body” without restriction to domestic students and without a stated racial classification, so I evaluate it in whole-class CDS shares, which require no conversion. Doing so is conservative. International enrollment at these colleges grew from roughly 9 percent of the entering class in the early 2010s to roughly 11 percent after the ruling, mechanically deflating recent whole-class shares relative to older ones. Measured stability therefore understates underlying stability.

Table 3 reports whole-class Black shares for every signatory, ordered by proportional change, together with the group mean. The pre-period matches the Harvard estimation window, the entering classes of fall 2010 through fall 2015. Post-ruling entries reflect fall 2024 alone where no usable 2025-26 filing exists. Bryn Mawr published a 2025-26 CDS that omits the racial composition table.

Table 3: Whole-class Black share for all thirty-three signatories of the Amherst brief, ordered by proportional change. The pre-period comprises the entering classes of fall 2010-2015. The post-period averages fall 2024 and fall 2025, or reflects fall 2024 alone where no usable 2025-26 filing exists. Changes are computed on unrounded shares.

School	Fall 2010-15 avg	Fall 2024-25 avg	Change
Amherst	11.8%	4.3%	-63%
Haverford	6.7%	2.8%	-58%
Vassar	5.3%	2.7%	-48%
Bates	5.2%	3.5%	-33%
Mount Holyoke	6.1%	4.7%	-23%
Williams	7.6%	6.1%	-20%
Barnard	6.8%	5.5%	-20%
Wesleyan	7.1%	5.9%	-17%
Colby	3.6%	3.0%	-15%
Wellesley	5.7%	5.1%	-11%
Hamilton	4.6%	4.0%	-11%

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School	Fall 2010-15 avg	Fall 2024-25 avg	Change
Pomona	6.7%	6.0%	-11%
Oberlin	5.5%	5.4%	-2%
Franklin & Marshall	5.1%	5.1%	0%
Bryn Mawr	5.0%	5.0%	+1%
Bowdoin	5.1%	5.2%	+2%
Smith	5.1%	5.7%	+11%
Swarthmore	6.0%	6.7%	+12%
Davidson	6.7%	7.7%	+15%
Sarah Lawrence	3.8%	4.4%	+17%
Trinity	6.0%	7.4%	+23%
Carleton	3.8%	4.8%	+25%
Middlebury	3.7%	4.7%	+27%
Tufts	3.9%	5.1%	+32%
Clark	4.0%	5.8%	+44%
St. Olaf	2.0%	2.9%	+46%
Bucknell	3.2%	4.7%	+47%
Connecticut College	3.8%	6.0%	+60%
Reed	1.8%	3.1%	+70%
Washington & Lee	2.4%	4.7%	+101%
Union	4.1%	8.5%	+106%
Macalester	2.5%	6.1%	+139%
Hampshire	2.6%	9.5%	+265%
All 33 signatories (mean)	4.9%	5.2%	+6%

Mean Black enrollment across the signatories was 4.9 percent of the entering class during the pre-period, climbed to 5.8 percent in the entering classes of 2020 through 2023, and stands at 5.2 percent in the two post-ruling classes. Relative to the benchmark period, the change is positive. The group mean did not fall at all, let alone by half, so the forecast fails at the level of the group before any school-level accounting. Because some institutions lack a usable 2025-26 filing, the post-period mixes one- and two-year averages. Of the thirty-three, twenty-six have filings for both post-ruling years, and the mean over that balanced panel is 5.1%, materially identical to the full-group figure.

Interpreting the brief's 2.1 percent endpoint as an absolute level would misapply it, since that figure describes Bowen and Bok's 1989 cohort rather than these colleges, whose own pre-period mean was 4.9 percent. The transferable content of the forecast is proportional. Applied to

each school’s own baseline, even the mildest version implies a post-ruling share no greater than half the pre-ruling share. Two signatories out of thirty-three satisfy this criterion. Amherst’s post-ruling average is 0.37 of its baseline, and Haverford’s is 0.42, a position produced by its fall 2025 filing, which reports eight Black first-year students in a class of 397. The next closest are Vassar at 0.52 and Bates at 0.67, and no other signatory falls below two thirds of its baseline. Because the choice of pre-period is not dictated by the brief, Table 4 repeats the calculation for four alternatives, including the complete set of filings that were public on the day the brief was signed. The group mean and the implied forecast interval are insensitive to the choice, and the count of signatories below half their baseline is two under three of the windows and one under the fourth.

Table 4: Sensitivity of the amici evaluation to the choice of pre-period. The final column counts signatories whose post-ruling mean share is at or below one half of their own baseline.

Baseline window	Baseline mean	Forecast implies	Observed post-ruling mean	Schools at or below half
Fall 2010-15 (litigation estimation window)	4.9%	1.5% to 2.5%	5.2%	2
Fall 2016-19	5.6%	1.7% to 2.8%	5.2%	2
Fall 2020-23 (final preference-era classes)	5.8%	1.7% to 2.9%	5.2%	1
Fall 2010-21 (all filings public at signing)	5.3%	1.6% to 2.7%	5.2%	2

Amherst’s forecast was the only institution-specific one in the brief, and its trajectory is unique in the group. The internal-planning estimate concerned combined Native American, Black, and Hispanic enrollment. That combined share averaged 25.2 percent of Amherst’s entering class over the pre-period and stood at 23.2 percent in fall 2023, the final cohort admitted under racial preferences. The fall 2024 class registered 13.5 percent, or 0.54 of baseline, with the Black component alone falling from an 11.8 percent baseline to 2.9 percent. The college’s own forecast of a reduction by approximately half was thus realized in the first post-ruling cycle, and only there. In fall 2025 the combined share returned to 21.2 percent and the Black share to 5.8 percent. Whatever admissions technology produced the 2024 outcome was available to the institution and was discontinued after one year. The reversal is examined in institutional detail below.

The Top-Ranked Cohort

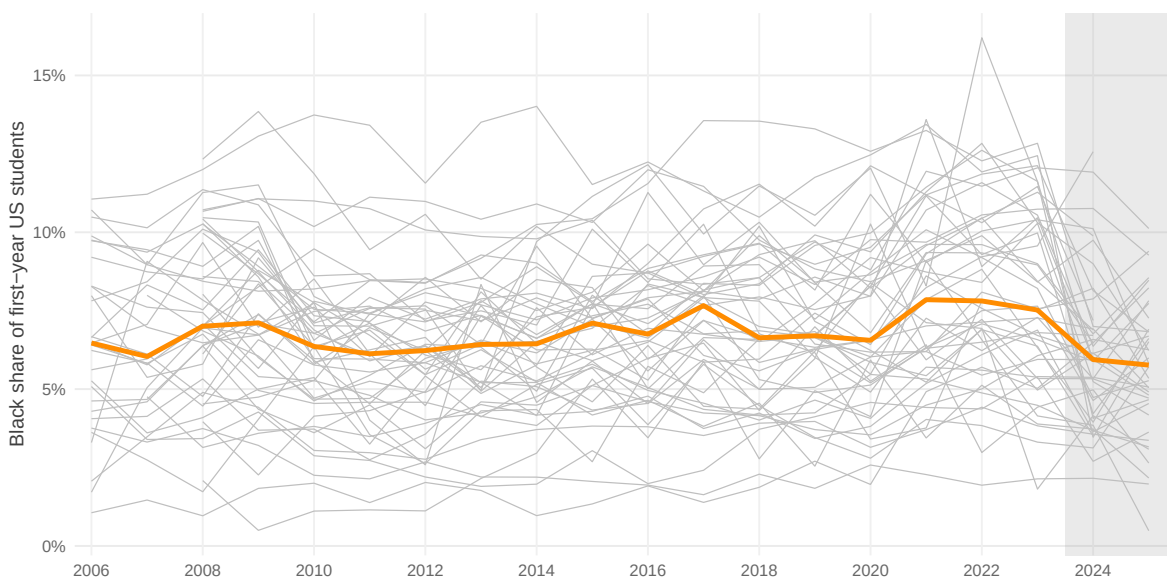
Extending the analysis to the union of the 2026 US News top-25 National Universities and top-25 National Liberal Arts Colleges, less the three service academies, brings the total to

forty-seven institutions. Unlike the three groups examined so far, these forty-seven never acted collectively in the litigation, and several filed nothing at all. The question here is not whether a specific forecast held but whether the patterns documented for the litigants extend across the market segment they occupy. Figure 1 plots the US Black share of each school's entering class from fall 2006 through fall 2025 together with the cross-sectional median.

Figure 1: US Black share of the entering class at the forty-seven institutions in the 2026 US News top-25 National Universities and top-25 National Liberal Arts Colleges (service academies excluded), fall 2006 through fall 2025. Grey lines are individual institutions, the orange line is the cross-sectional median, and the shaded region covers the two post-ruling cycles. The fall 2025 median is computed over the thirty-nine institutions with usable filings. Sources: IPEDS Fall Enrollment and CDS item B2.

Black share of first-year US students, top-ranked institutions

Grey: individual schools. Orange: median. Shaded: post-SFFA cycles.



The median share occupied a band between 6.0 and 7.7 percent from 2006 through 2019, rose to a maximum of 7.9 percent in fall 2021, and registered 5.9 and 5.8 percent in the two post-ruling cycles. The net movement from the center of the long-run band is under one percentage point, a fifth or less of the three-and-a-half to five points that declines of 50 to 70 percent imply on a base near 7 percent. Selection into fall 2025 disclosure does not manufacture this stability. The eight cohort schools without a usable 2025 filing entered fall 2024 with a median Black share of 6.8 percent, against 5.4 percent for the thirty-nine that later filed, so the missing schools, if anything, depress the observed 2025 median, and the full-panel figure would likely sit higher.

The 2020-2022 increase identifies the presence of discretionary control. Between the fall 2020 and fall 2022 entering classes, the median Black share rose more than a full percentage point, with relative increases above 20 percent at many institutions, over an interval in which the score

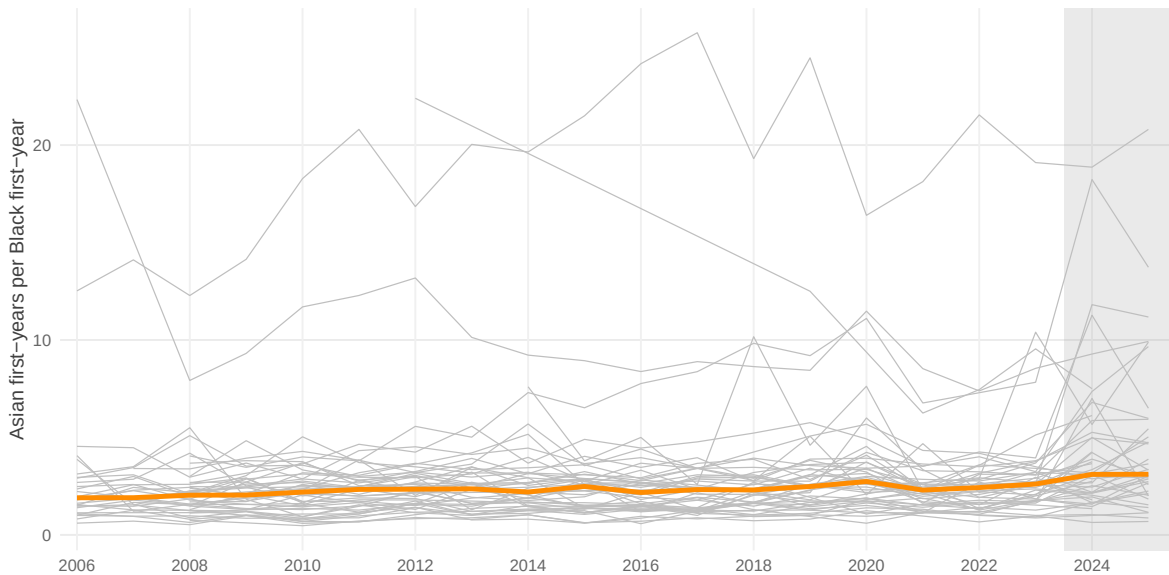
distribution of the national applicant pool and its racial composition were essentially static (the College Board’s annual Total Group reports show group means and shares nearly unchanged over these years). The proximate cause was not a change in applicant characteristics but an institutional response to the events of 2020. The episode establishes that these institutions possessed, and exercised, the capacity to shift Black enrollment by large amounts within one to two cycles. The relevant question for the post-ruling period is whether that capacity was surrendered or redirected.

Figure 2 examines the ratio of Asian to Black first-year US students, a statistic chosen for two properties. It requires no denominator, being a quotient of two counts from adjacent lines of the same filing, and it is therefore immune to the international-share and nondisclosure issues discussed above so long as nondisclosure is not strongly race-selective. The litigation context also makes it the natural summary measure, since the plaintiffs were Asian American and the preferences at issue operated most heavily between the Asian and Black margins.

Figure 2: Ratio of Asian to Black first-year US students at the same forty-seven institutions. Institution-years with fewer than five Black first-years are excluded. The upper band of trajectories consists of Berkeley and UCLA, which have operated under California’s Proposition 209 since 1996, and the four STEM-intensive institutions (Caltech, MIT, Carnegie Mellon, Harvey Mudd). Sources: IPEDS Fall Enrollment and CDS item B2.

Asian / Black ratio of first-year US students, top-ranked institutions

Grey: individual schools. Orange: median. Shaded: post-SFFA cycles.



The cohort median drifted from approximately 1.9 in 2006 to 2.6 by 2023 and averages 3.1 across the two post-ruling cycles. The institutions operating under a legal prohibition on racial preferences, Berkeley and UCLA, together with the STEM-intensive schools whose applicant pools skew heavily Asian, occupy ratios between 6 and 13 at the median and up to 25.8 in

Berkeley’s case (2,396 Asian against 93 Black first-year US students in 2017). California’s applicant pool contains proportionally more Asian and fewer Black students than the national pool serving the private institutions, and the University of California has admitted test-blind since 2021, so these values mark the general region rather than the exact level that race-blind selection would imply elsewhere. The post-ruling movement of the private-school median, roughly half a point, covers a small fraction of the interval separating it from that region.

Individual trajectories within the cohort followed a common sequence. The first post-ruling cycle produced large single-school deviations, with Stanford rising to 7.4 against a historical range of 2 to 3, Cornell to 6.8, Amherst to 7.0, Brown to 5.0, and Johns Hopkins and MIT to 11.8 and 11.3. In the second cycle most of these reverted, Amherst to 2.0, Brown to 3.3, Cornell to 6.0, and MIT to 6.5, while Stanford continued to 9.7 and Johns Hopkins remained at 11.2. The modal institution experimented with a substantially higher ratio for one cycle and then returned to its historical position.

Two Institutional Trajectories

The aggregate stability documented above conceals two exceptions, one at each end of the range of institutional response.

Amherst’s forecast came true, and the college’s public posture after the fall 2024 release treated the outcome as vindication. The college announced that 3 percent of the Class of 2028 identified as Black under federal reporting rules, against 11 percent the year before, with domestic students of color falling from 47 to 38 percent of the class (Amherst Student 2024a). National coverage presented the numbers as the realization of the college’s own brief. President Michael Elliott called the outcome disappointing and warned that the change could “diminish the sense of belonging” of enrolled students (Amherst Student 2024a). The campus discussion also reproduced, in miniature, the measurement problem documented for Harvard above: under self-identification the same class was 9 percent Black, and under the federal single-race rules it was 3 percent, a gap the student newspaper examined at length (Amherst Student 2024b). The next cycle reversed the outcome. The college expanded digital and in-person recruiting, joined the STARS rural-recruitment network, admitted a record share of first-generation students, and released its class data a month later than usual (Amherst College 2025; Amherst Student 2025). Its Asian-to-Black ratio traced the same arc as the underrepresented shares reported earlier, rising to 7.0 in the first post-ruling cycle and returning to 2.0 in the second. The institution that treated the ruling as binding produced its own forecast for exactly one cycle and then rebuilt the prior composition by other means.

Johns Hopkins, by contrast, has presented itself as complying, and its filings support the presentation. Its announced Class of 2028 figures showed underrepresented enrollment falling from 37.0 to 17.6 percent of the class, with the Black share dropping from 13.8 to 5.7 percent in the university’s self-identified categories (JHU News-Letter 2024). President Ronald Daniels responded that the university would pursue diversity “while fully complying with the Supreme

Court’s restriction on the consideration of race in admissions” (Daniels 2024). The second cycle extended the movement instead of reversing it. Local reporting found Asian students rising from 26 percent of the entering class in 2023 to 41 percent in 2024 and 45 percent in 2025, a trajectory without parallel among peer institutions, and the university’s comment was that it “complies with federal law and does not consider race or ethnicity in admissions” (Baltimore Banner 2026). In my metrics, Hopkins’s Black share of US first-years fell from a 6.0 percent pre-period mean to 4.4 percent, and its Asian-to-Black ratio registered 11.8 and 11.2 in the two post-ruling cycles, leaving it, with Stanford, one of only two institutions still outside its historical range in the second year. Where a school actually stopped considering race, the movements were large and immediate, and at Hopkins they persisted, above all in the Asian share. Nothing similar appears at the other forty-five institutions.

The Test-Taking Population

The operative benchmark in this paper for what race-blind elite admissions produces is the Proposition 209 institutions, not any test-score cutoff. National testing data nonetheless explain why that benchmark sits so far above the private-school ratios. The College Board’s summary of the 2,004,965 SAT takers in the high school graduating class of 2025 reports mean total scores of 1,229 among the 217,459 Asian test-takers and 904 among the 250,887 African American test-takers, a difference exceeding 300 points against group standard deviations near 200 (196 and 212 for the African American and Asian distributions, estimated from the report’s score-band tables) (College Board 2025). Distributions separated by that distance thin at very different rates in the upper tail. In the 1400-to-1600 band, approximately the range from which the institutions studied here draw most of their admits, the report counts 56,539 Asian, 52,079 White, 10,752 Hispanic, and 2,509 Black test-takers (College Board 2025, score-distribution tables by race and ethnicity), an Asian-to-Black ratio of 22.5 between two groups of comparable overall size. No party to the litigation proposed admission by test score alone, and holistic race-neutral review would not reproduce the top-band ratio. The tail arithmetic shows something narrower: any selection process that weights academic credentials heavily and applies no racial offsets will generate ratios in the general region the California universities actually occupy, and the private institutions’ enrolled ratio of 2 to 3, essentially unchanged across the ruling, is not the output of such a process.

Conclusion

Two admissions cycles after *SFFA v. Harvard*, the enrollment records of the institutions most affected by the decision show the following. Harvard’s Black enrollment share, expressed in any internally consistent metric, equals its level in the years when it used the admissions system the Supreme Court found unlawful. At the fifteen research universities that assured the Court that race-neutral admissions would undercut their diversity, the mean Black share of US first-years moved from 7.4 to 7.2 percent, and six signatories sit above their baselines.

Among the thirty-three colleges that jointly forecast declines of 50 to 70 percent, mean Black share is marginally higher than in the corresponding benchmark period, and thirty-one of them never approached the mildest version of their own forecast. The ratio of Asian to Black first-years, the summary statistic most relevant to the underlying litigation and the one least vulnerable to measurement objections, moved from roughly 2.5 to roughly 3.1 against race-blind benchmarks two to eight times higher. The parsimonious reading of this evidence is that elite institutions have not meaningfully changed the admissions policies the ruling was intended to end. What has changed is calibration: the enrollment level being produced, and its uniformity across institutions, are consistent with management toward inconspicuousness rather than with either continuation of pre-ruling levels or genuine race-blindness. That characterization is an interpretation of the pattern, not a finding the data compel.

The data cannot identify the mechanism. Whether present practice reflects consideration of race as such, which the Court prohibited, or of experiential factors correlated with race, which the Court permitted, is not answerable from aggregate filings, and I do not claim otherwise. What the analysis does establish is that the quantitative expertise deployed in the litigation has functioned, after the fact, to obscure the question. The most cited prediction in the case was stated in units that no public statistic reports, by an expert whose analysis never faced peer review but was certified as sound to the Supreme Court by sixteen economists including three Nobel laureates, and it is now routinely compared against filings computed under incompatible definitions, generating an appearance of compliance that a factor-of-two conversion dissolves. Economists who supply litigation estimates in nonpublic units might reasonably be expected to publish the mapping to public categories at the same time. Absent such mappings, predictions of this kind are unfalsifiable in practice, whatever their merits in principle, and the institutions they concern are the primary beneficiaries of the ambiguity.

Data and Code

Data and code sufficient to reproduce every number, table, and figure in this paper, including the extraction pipeline that assembles the Common Data Set and IPEDS filings for every school in the analysis, are available at <https://github.com/davidkane9/after-sffa>.

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